

Vijay v. State of U.P. (s.135 FIR; compounding and arrest)

High Court of Judicature at Allahabad · Division Bench · 8 April 2015 · Crl. Misc. W.P. No. 8552 of 2015 · Criminal Misc. Writ Petition No. 8552 of 2015 · **FIR quash refused; compounding under Code/s.152; CrPC arrest safeguards**

HEADNOTE

A Division Bench refused to quash an FIR under Section 135 of the Electricity Act, 2003 because it disclosed a cognizable offence. Arrest not having been made, the Court directed that if arrest were effected for an offence not entailing more than seven years' imprisonment, the police must comply with CrPC ss. 41(1)(b) and 41-A. If the offence is compoundable, the accused may seek compounding under the Electricity Supply Code, 2005 and Section 152 of the Act.

FACTUAL SUMMARY

Vijay filed a criminal miscellaneous writ petition seeking to quash an FIR dated 10 March 2015, registered as Case Crime No. 193 of 2015 under Section 135 of the Electricity Act at Police Station Hathras Junction, District Hathras. Counsel for the State and for the Power Corporation appeared. Arrest had not been made. The petitioner contended that the alleged offence could not attract a sentence of more than seven years, that arrest should not be mechanical, and that the offence was compoundable.

HOLDING-UNITS

HOLDING-UNIT · EA2003::135

quashing s.135 FIR

HOLDING

An FIR under Section 135 of the Electricity Act, 2003 that discloses a cognizable offence is not to be quashed in writ jurisdiction. ¶ 1

INTERPLAY · EA2003::152

compounding of s.135 offence

HOLDING

If the alleged electricity offence is compoundable, the accused may seek compounding under the Electricity Supply Code, 2005 and Section 152 of the Electricity Act, 2003. ¶ 1

PRINCIPLE TAGS

s135-arrest-safeguards-and-compounding-remedy Writ to quash a s.135 FIR refused; compounding left to Code and s.152; CrPC ss. 41(1)(b) and 41-A directed if arrest is to be made for an offence not exceeding seven years. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ALLEGED S.135 OFFENCE WAS COMPOUNDABLE ON THESE FACTS

Left to be pursued under the Supply Code, 2005 and s.152 if the offence is compoundable. ¶ 1